

buzzing of such opinions in the ears and hearts of the people, being his subjects, and Glanvil defines treason to be, viz. *qui aliquid machinantur in necem regis*, see 25 E. 3.—But Williams for himself objects, that what he did and wrote, was not out of any malicious or disloyal heart towards the king, but proceeded out of his love, and that he intended this as a caveat and admonition, whereby the king should avoid these mischiefs which were very like for to happen to him, which appears many times in his book, as he says, for when he has declared the judgment and destruction, &c. he concludes the sentence thus, viz. (which God avert) or such like words. 2. This matter rests only in opinion and thought, and it was not carried to any overt act in execution, for no rebellion, treason, or other mischief ensued upon it. 3. He inclosed his Book in a box sealed up, and so secretly conveyed it to the king, and never published it.—As to the first objection, the court answer, that no respect shall be paid to the good intention of a man, when his words and actions appear to the contrary, and when a man had talked treason in the previous part of a sentence, he cannot qualify it by ‘God save the king.’ As to the second objection, howbeit rebellion, treason, &c. did not ensue upon it, yet Doddridge said that the rule is *in atrocioribus delictis, punitur affectus, licet non sequatur effectus*; for if an attempt be made to imprison the king, albeit his death is not intended, still this is high treason, for it is the means by which his death may ensue, and this was the case as Mountague said of king E. 2. *

* As to this, see Luders on the Law of High Treason, in the article of levying war, 77;

and he cited sir Nicholas Throgmorton's Case in Dyer, * where was only a conference concerning the death of the queen, and it did not take effect, and still it was resolved to be high treason, and it cannot be said in this case that this matter rests in thought, since it is reduced to writing, for *scribere est agere*, † and if words can amount to treason, (as clearly they may) *à fortiori* when they are reduced to writing, and although they were never spoken, still it now appears that his intent was treasonable; and therefore, as to the third objection, it was clearly agreed that although this Book was inclosed in a box sealed or in his study, still because by this act his intent appears, therefore it is high treason, and Yelverton, the king's Attorney, said, that at common law there be four manners of treasons, 1. Rebellion. 2. To deny the king's title and power, temporal or spiritual. 3. To advance and maintain superior power to the king. 4. In bearing his subjects in hand that the king's government is erroneous, heretical, and unjust, whereby the manner of his government is impeached, and called in question; which Doddridge affirmed, and said that these are undeniable maxims.

and Mr. St. John's Argument in lord Strafford's case, (*infra*) as there quoted.

* There is a very short note of the point in Dyer's Rep. 98. b. pl. 56. The case at large is inserted in this Collection, vol. 1, p. 869.

† Concerning words and writings as overt acts of treason, see East's Pleas of the Crown, ch. 2, s. 55, 56, and the cases and other authorities there referred to. In this Collection see the cases of Algernon Sidney, A. D. 1683. Sir John Fenwick, A. D. 1696.

115. Proceedings in Parliament against FRANCIS BACON Lord Verulam, Viscount St. Albans, Lord Chancellor of England, upon an Impeachment for Bribery and Corruption in the Execution of his Office: And also against Dr. THEOPHILUS FIELD, Bishop of Llandaff, &c. 18 & 19 JAMES, A. D. 1620. [1 Commons Journals, 554. 3 Lords Journals, 53. 1 Cobb. Parl. Hist. 1208.]

PROCEEDINGS IN THE HOUSE OF COMMONS.
March 15, 1620.

SIR Robert Phillips reports from the Committee appointed to enquire into Abuses in the Courts of Justice, viz.

“I am commanded from the said Committee to render an account of some Abuses in the Courts of Justice, which have been presented unto us. In that which I shall deliver, are three parts. First, The Person against whom it is alledged. Secondly, The Matter alledged. Thirdly, The Opinion of the Committee.

1. The Person against whom it is alledged, is no less than the Lord Chancellor, [Francis lord Verulam, viscount St. Albans,] a man

so endued with all parts, both of nature and art, as that I will say no more of him; being not able to say enough. 2. The Matter alledged, is Corruption. 3. The Persons by whom this is presented to us, are two, viz. Awbrey and Egerton. Awbrey's Petition saith, that he having a Cause depending before the Lord-Chancellor, and being tired by delays, was advised by some that are near my lord, to quicken the way by more than ordinary means, viz. by presenting my lord with 100*l*. The poor gentleman not able by any means to come to his wished-for port, struck sail at this, and made a shift to get an 100*l*. from the usurer; and having got it, went with sir George Hastings and Mr. Jenkins to Grays-Inn; and